

25STCV19741 25STCV19741

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 25STCV19741 Hearing Date: September 17, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:58 PM on September 16, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 16, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

This

is a Lemon Law action based on alleged defects in Plaintiff's vehicle.

Defendant

David Wilson Villa Ford of Orange County moves for judgment on the pleadings as to the First Amended Complaint.

TENTATIVE RULING

Defendant David Wilson Villa Ford of Orange County's motion for judgment on the pleadings as to the First Amended Complaint is GRANTED without leave to amend as to the fifth cause of action.

ANALYSIS

Motion For Judgment on the Pleadings

Meet and Confer

The

Declaration of Nicole M. Peterson reflects that Plaintiff's counsel did not respond to meet and confer efforts. This satisfies Code Civ. Proc. § 439(a)(3)(B).

Discussion

The Court has reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

On a motion for judgment on the pleadings, the same rules applicable on demurrer apply. (County of Orange v. Association of Orange County Deputy Sheriffs (2011) 192 Cal.App.4th 21, 32-33.)

Defendant

David Wilson Villa Ford of Orange County moves for judgment on the pleadings as to the First Amended Complaint.

1. Fifth Cause
of Action (Negligent Repair).

Defendants argues
that this cause of action is barred by the economic loss rule.

The fifth cause

of action is based upon the dealer Defendant allegedly performing negligent repairs when Plaintiff bought the vehicle in for repairs. (1AC, ¶¶ 72 – 75.)

Because a repair

contract would necessarily exist between Plaintiff when he brought the vehicle for repairs (1AC, ¶ 72), and because Plaintiff does not allege injury to her person or property as a result of the allegedly negligent repairs, it appears that the economic loss rule bars this cause of action as pled:

We begin with a review of the contours of the economic loss rule.

The rule itself is deceptively easy to state: In general, there is no recovery in tort for negligently inflicted “purely economic losses,” meaning financial harm unaccompanied by physical or property damage. (Citations omitted.)

. . .

In another recurring set of circumstances, the rule functions to bar claims in negligence for pure economic losses in deference to a contract between litigating parties. . . [*923] .

. .

. . . Not all tort claims for monetary losses between contractual parties are barred by the economic loss rule. But such claims are barred when they arise from—or are not independent of—the parties’ underlying contracts. (Citations omitted.) Plaintiff’s claim here arises from, and is not independent of, the mortgage contract.

(Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 922-23.)

In contrast, we have never done what plaintiff now asks us to do: rely on *Biakanja* to impose a tort duty on a contracting party to avoid negligently causing monetary harm to another party to that contract. (Citation omitted.)

(Sheen, *supra*, 12 Cal.5th at 938.)

“ ‘[A]ctual damage’ [*1662]

in the sense of “harm” is necessary to a cause of action in negligence; nominal

damages are not awarded. (Citations omitted.) This is reflected in the California statutes. Compensatory damages are allowed to one “who suffers detriment.” (Civ. Code, § 3281; see also id., § 3333.) “Detriment is a loss or harm suffered in person or property.” (Civ. Code, § 3282.)”

(Duarte
v. Zachariah (1994) 22 Cal.App.4th
1652, 1661-62 [bold emphasis added].)

While this Court has previously cited case law which held that the economic loss rule does not apply to contracts for services (North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 781), upon further review, the Court notes that this principle has been limited to the context of insurance policies and contracts for professional services, such as legal services. (Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905, 929, 932, 933.) As such, the Court finds that the economic loss rule applies to this garden-variety contract for car repair services.

The motion for judgment on the pleadings as to the fifth cause of action is GRANTED without leave to amend.